

justify *preliminary* approval. The motion is **granted**.

2. Counsel are directed to prepare an order reflecting this ruling, the other findings in the previously submitted proposed order lodged on March 20, 2026 attaching a copy of this ruling. If there is a conflict in the proposed order and this ruling, the terms of this ruling shall prevail.
3. Counsel are ordered to obtain a hearing date for the motion for final approval from the Department clerk. Other dates in the scheduled notice process should track as appropriate to the hearing date. The ultimate judgment must provide for a compliance hearing after the settlement has been completely implemented. Plaintiffs' counsel are ordered to submit a compliance statement one week before the compliance hearing date, which shall include the matters necessary to comply with Code of Civil Procedure section 384, subdivision (b).
4. Notwithstanding any contrary provision in the settlement agreement, 5% of the attorneys' fees are to be withheld by the administrator until released by the Court after review of the compliance statement.
5. The Court may issue a release of attorneys' fees through an unreported minute order without a hearing upon review of the compliance statement representing full compliance with the Court's Final Order Approving Settlement.
6. No appearance is required at the hearing on August 5, 2026.

7. 9:00 AM CASE NUMBER: C24-02789
CASE NAME: QUINITA DANIEL VS. HOMELIFE SENIOR CARE, INC., A CALIFORNIA CORPORATION;
COMPEL ARBITRATION
FILED BY: HOMELIFE SENIOR CARE, INC., A CALIFORNIA CORPORATION;

TENTATIVE RULING:

This hearing is **vacated** per stipulation. See order for date of continued hearing. If this matter settles, as represented, counsel are requested to submit a proposed stipulation and order to vacate the continued hearing date. No appearance is required at the August 5, 2026 hearing.

8. 9:00 AM CASE NUMBER: C25-01976
CASE NAME: CASSIE LANCASTER VS. DISCOVERY BUILDERS, INC.

FILED BY: DISCOVERY BUILDERS, INC.

TENTATIVE RULING:

Introduction

Defendant Discovery Builders, INC. ("DBI") brings this Motion to Compel Arbitration and Stay Matter pursuant the Master Declaration For Title 7 & Dispute Resolution recorded in County of Contra Costa on June 12, 2014 ("the Master Declaration") and in accordance with California Code of Civil Procedure section 1281.2. The Motion is opposed by Plaintiffs Cassie and Christopher Lancaster ("Plaintiffs").

For the following reasons, the **Motion to Compel Arbitration is denied**.

Background Facts

This is a single-family home construction defect action arising under Civil Code sections 896 et seq.